

TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at [Court Reporter Services | Superior Court of California | County of Orange](#).

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange](#) prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS**5/21/2026****02:00 PM**

101	Zepeda vs. Broker Soultions, Inc. 2019- 01051868	Final Accounting The Final Accounting hearing is continued to August 13 2026 at 2:00 p.m. in Department CX102. Plaintiff is ordered to file a declaration no later than 9 court days prior to the hearing regarding the status of distribution efforts. <u>If all settlement funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance, or the court will set an OSC re: monetary sanctions.</u> The administrator states no unclaimed funds have been disbursed to the State Controller. ROA 349. She further states unclaimed funds will be disbursed to the State Controller by May 18, but does not specify the year or the exact amount of such funds. Id. The court's file thus cannot be closed at this time. Plaintiff to give notice.
102	Lopez vs. Vehicle Protection Specialists, LLC 2020- 01174402	Final Accounting On 04-17-2025, the court granted final approval of the parties' \$275,000 class action and PAGA settlement. ROA 228. The order and judgment was entered 05-05-2025. ROA 239. The court approved the following disbursements: • \$68,750 for attorneys' fees • \$10,000 for litigation costs • \$10,000 (\$5,000 each) for plaintiffs' enhancement awards • \$6,300 for settlement administrator's costs • \$15,000 to the LWDA for PAGA penalties • \$5,000 to Aggrieved Employees for PAGA penalties The administrator, Lisa Pavlik of Simpluris, Inc., reports the various payments were mailed on 06-18-2025. ROA 143. <i>The court observes the administrator failed to pay counsel the correct amount in attorney's fees, which has deprived class members of \$10,000.</i> ROA 243 ¶ 3. The administrator and counsel both fail to acknowledge this error.

		The court does not understand how this substantial overpayment could not have been realized by counsel immediately upon its receipt. Counsel is ordered to appear at the hearing to propose a prompt solution, including a timetable. Preliminarily, the court contemplates the following is necessary to achieve fairness to class members: 1. Repayment of \$10,000 plus interest at a rate of 10% per annum pursuant to California Code of Civil Procedure § 685.010(a) for the period from June 18, 2025 through June 1, 2026, the date upon which the Settlement Administrator should distribute the funds to class members. 2. The redistribution payments must include any applicable payroll taxes and the tax treatment of payments shall be consistent with the settlement, i.e., 10% wages and 90% interest. Settlement ¶ 32.
103	Fan vs. Cybercoders, Inc. 2021-01207940	Final Accounting The Final Accounting hearing is continued to August 20, 2026 at 2:00 p.m. in Department CX102. Plaintiff is ordered to file a declaration no later than 9 court days prior to the hearing regarding the status of distribution efforts. <u>If the settlement funds are not completely disbursed by the report deadline, including all unclaimed funds, counsel must request a continuance.</u> The court also sets an OSC re: monetary sanctions against plaintiff's counsel for the same date and time due to the failure to file a final accounting report, as previously ordered. ROA 138 ¶ 20. Any response to the OSC must be filed no later than 9 court days prior to the hearing. Court clerk to give notice.

104	Barraza vs. Alta Newport Hospital, LLC 2023-01304199	Final Accounting The Final Accounting hearing is CONTINUED to July 23, 2026 at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller’s Office Unclaimed Property Fund in the names of the applicable payees, that the administrator’s work is complete, and that the Court’s file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. Plaintiff is ordered to give notice of this ruling to Defendant.
105	Fierro vs. 5.11, Inc. 2020-01171395	Final Accounting Plaintiffs Yesenia Fierro and Cherise Morris Eastman’s Final Accounting hearing is CONTINUED to July 23, 2026 at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the <i>cy pres</i> recipient, Legal Aid at Work; that the administrator’s work is complete; and that the Court’s file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If a supplemental report cannot be filed by this deadline, counsel must request a continuance. Failure to request a continuance may result in the issuance of an Order to Show Cause re Monetary Sanctions. As the administrator attested in its 2/9/2026 declaration, “[p]ursuant to the terms of the Parties’ Settlement Agreement, the total amount associated with the checks that are not cashed, deposited, or otherwise negotiated, after the check cashing deadline, shall be sent to the <i>cy pres</i> recipient, Legal Aid at Work. Upon Court’s Order, ILYM Group shall send \$54,293.61, which is the funds associated with the two hundred ninety-two (292) checks that were not cashed, deposited, or otherwise negotiated, to the <i>cy pres</i> recipient, Legal Aid at Work.” Code of Civil Procedure section 384.5 provides, in relevant part: If a judgment in a class action . . . provides for a distribution of money or any other thing of value to a person or entity that is not a party to the action, the court shall transmit a copy of the order, judgment, or decree to the Judicial Council. The order, judgment, or decree <i>shall contain, at a minimum, the information necessary for the</i>

California Research Bureau to complete the report required by Section 68520 of the Government Code.

(Emphasis added.)

Government Code section 68520, subdivision (a) provides, in relevant part:

On January 1, 2024, and on January 1 of every fifth year thereafter, the California Research Bureau shall prepare and publish on its Internet Web site a report containing information regarding the distribution of money or any other thing of value pursuant to a judgment in a class action . . . if the judgment provides for a distribution to a person or entity that is not a party to the class action. The report shall cover judgments entered in class actions during the five-year period before the date of the filing of the report and shall contain, at a minimum, the following information:

- (1) The name of the case.
- (2) *The cause of action resolved by the judgment, with a summary of the underlying allegations or supporting factual findings.*
- (3) The name of, *and the amount distributed to,* each nonparty person or entity.
- (4) The name of the judge ordering the distribution.
- (5) *The purpose of the distribution to the nonparty person or entity and how the nonparty person or entity plans to expend the funds or proceeds received, if known.*

(Emphases added.)

Here, the judgment the Court previously entered on 5/6/2026 identified the name of the case, the name of the cy pres recipient, and the name of the judge ordering the distribution to the cy pres recipients. (ROA #280.) The judgment does not, however, identify (1) the causes of action resolved by the judgment with a summary of the underlying allegations, (2) the amount to be distributed to the cy pres entity (which, admittedly, could not have been known until after the cash-checking deadline has expired), or (3) the purpose of the distribution to the entity or how the entity plans to expend the funds or proceeds received, if known.

Accordingly, Class Counsel is **ORDERED** to lodge with the Court, within 5 court days of this ruling, a proposed further revised order of final approval and judgment that includes the missing information. (See Code Civ. Proc., 384, subd. (a) [providing for

		amendment of judgment to specify distribution to cy pres recipient].) Upon entry of the amended order of final approval and judgment, the Clerk will transmit a copy to the Judicial Council. Plaintiffs are ordered to give notice of this ruling to Defendants.
106	Barcnas vs. El Toro Meat Shop 2023-01351414	Final Accounting The settlement administrator, Phoenix Settlement Administration, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
107	VALDES IBANEZ vs. ANCHOR INTERNATIONAL SECURITY 2024-01385083	1. Case Management Conference 2. Motion for Leave to File Amended Complaint Plaintiff Francisco Alfonso Valdes Ibanez's motion for leave to file a second amended complaint ("SAC") is GRANTED. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.; <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The Court continues the CMC to August 13, 2026 at 9:30AM in CX102. A joint CMC statement shall be filed 10 days in advance. 1. Procedural Requirements California Rules of Court (CRC), rule 3.1324 requires that a motion to amend include a copy of the proposed amendment or amended pleading; identify by page, paragraph, and line number any additions to and deletions from the prior pleading; and include a supporting declaration that specifies: (1) The effect of the amendment; (2) Why the amendment is necessary and proper;

- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.

(CRC, rule 3.1324(a), (b).)

Here, Defendants Lopez and Gallo contend that Plaintiff failed to identify by page, paragraph, and line number all additions to and deletions from the prior pleading because Plaintiff's brief and the text of the supporting declaration of Plaintiff's counsel flagged only the additions of paragraphs 11 and 12 and the change to plural "Defendants" instead of the singular "Defendant" throughout the complaint. But as Plaintiff points out, Plaintiff's counsel also submitted a redline that compares the SAC with the FAC and flags all the edits. The redline is sufficient to identify all the edits from the prior pleading.

Defendants Lopez and Gallo also contend that Plaintiff's moving papers failed to explain when the facts giving rise to the new allegations were discovered or why this request was not made earlier. The Court agrees that Plaintiff counsel's declaration attesting that the prior unauthorized filing of the SAC on 4/29/2025 as inadvertent does not explain when the new allegations in the SAC were discovered or why the request for amendment was not made *earlier*, only why the request for amendment was not made.

Nevertheless, these procedural deficiencies have not caused any prejudice to Defendants Lopez and Gallo. Accordingly, the Court excuses these procedural deficiencies in Plaintiff's moving papers but also admonishes Plaintiff's counsel to comply with all applicable rules and procedures moving forward.

2. Merits

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc. [CCP], § 473, subd. (a)(1).) Further, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, . . . may allow the amendment of any pleading" (CCP § 576.)

"[C]ourts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial," so long as "no prejudice is shown to the adverse party." (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes and citations omitted].)

"The policy favoring amendment is so strong that it is a rare case

in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.) Indeed, “judicial policy favors resolution of all disputed matters in the same lawsuit,” and “it is irrelevant that new legal theories are introduced as long as the proposed amendments ‘relate to the same general set of facts.’” (*Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1047-1048, quoting *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 489.)

Leave to amend may be denied if the party seeking the amendment has been dilatory *and* the delay has prejudiced the opposing party. (*See Hirsa, supra*, 118 Cal.App.3d at p. 490.) Delay is most likely to result in prejudice warranting a denial of leave to amend “[w]here the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery.” (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 488.)

But “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.) “[W]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Atkinson, supra*, 109 Cal.App.4th at p. 761.)

Defendants Lopez and Gallo acknowledge that leave to amend should be liberally granted, and they also do not assert any prejudice resulting from Plaintiff’s delay in seeking leave to amend.

Defendants’ only concern is that Plaintiff’s motion requests that the Court “validate the Court’s previous acceptance of the SAC for filing.” Defendants request that if the Court grants Plaintiff leave to file the SAC, the Court does so only prospectively by ordering Plaintiff to re-file and re-serve the SAC after entry of the Court’s order, such that Defendants’ time to respond to the SAC runs from proper service of the re-filed SAC. Defendants also wish to ensure that their rights are reserved with respect to all pleading challenges and defenses.

		Plaintiff does not oppose Defendants' requests. In fact, Plaintiff's original moving memorandum of points and authorities concludes by requesting that the Court "retain the filing" of the SAC on 4/29/2025 "and/or to file the proposed Second Amended Complaint." (ROA #133, Mot. P&A at p. 7.) Indeed, on 11/13/2025, the Court already granted Defendants Lopez and Gallo's motion to strike Plaintiff's SAC filed on 4/29/2025 at ROA #102. (ROA #141.) Therefore, that SAC has already been stricken from the record, so there is no SAC currently on file in this case. Accordingly, in granting Plaintiff leave to file the SAC now, the Court ORDERS Plaintiff to separately file with the Court within 3 days of this ruling the proposed SAC attached to Plaintiff's counsel's declaration (ROA #133, Exh. B). The proposed SAC must be filed as a separate document to ensure it is properly indexed in the record. The Court also ORDERS Plaintiff to serve all defendants with the properly filed SAC within 30 days. Defendants' deadline to respond shall run from service of the properly filed SAC pursuant to this order. Plaintiff shall give notice.
108	Siguenza vs. 24 Carrots, LLC 2020-01160884	1. Case Management Conference 2. Motion to Strike MOTION OFF-CALENDAR PER STIPULATION; CMC CONTINUED TO 11/5/26 AT 9:30AM
109	Siguenza vs. 24 Carrots, LLC 2020-01168873	Case Management Conference CMC CONTINUED TO 11/5/26 AT 9:30AM

110	Hernandez vs. Resource Employment Solutions, LLC 2019-01084740	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Raymundo Hernandez and Adela Hernandez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of a fully executed Second Amended Joint Stipulation and Settlement Agreement and a further revised proposed order. This is a putative wage-and-hour class action and PAGA matter. On 7/19/2019, Plaintiff Raymundo Hernandez, individually and on behalf of other persons similarly situated, filed a class action complaint against Defendants Resource Employment Solutions, LLC (“RES”) and Houdini, Inc. (ROA #2.) The complaint alleged 5 causes of action for: 1. Failure to Pay Wages; 2. Failure to Provide Meal Periods; 3. Failure to Timely Pay Wages at Termination/Separation; 4. Failure to Provide Accurate Wage Statements; and 5. Violation of Unfair Business Practices Act – Bus. & Prof. Code §§ 17200, et seq On 9/23/2019, Plaintiff filed the first amended complaint (FAC) adding a cause of action for PAGA penalties. (ROA #13.) Defendant Houdini moved to compel arbitration. (ROA #37.) On 10/12/2021, after several pandemic-related continuances, the Court denied the motion. (ROA #142.) On 4/14/2022, Plaintiff filed the operative second amended complaint (SAC) adding Defendant Resource Employment Solutions II California, LLC (“RES II CA”) to the action and a cause of action for failure to provide paid rest periods. (ROA #177.) On 3/13/2023, the Court took notice that two other matters are related to this action: (1) <i>Villagomez v. Houdini, Inc.</i>, Case No. 2020-01140694; and (2) <i>Adela Hernandez v. Houdini, Inc.</i>, Case No. 2021-01212206. (ROA #198.) The <i>Villagomez</i> case settled separately, and on 8/29/2023, the Court entered an order dismissing that case without prejudice. (ROA #284 in 2020-01140694.) The <i>Adela Hernandez v. Houdini</i> case commenced the action against Houdini and Resource Employment Solutions II California,
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LLC on 7/23/2021. (ROA #2 in 2021-01212206.) Pursuant to the parties' stipulation and the Court's order on 2/28/2022, Plaintiff Adela Hernandez's individual Labor Code claims were submitted to binding arbitration (JAMS Arbitration Ref. No. 5200000946); the class allegations were dismissed without prejudice; the operative FAC is deemed filed and served to add PAGA claims, and Plaintiff Adela Hernandez may proceed with the PAGA representative action in state court concurrently with arbitrating her individual Labor Code claims. (ROA #45 in 2021-01212206.) The operative FAC, filed on 4/1/2022, alleges the following 8 causes of action:

1. FAILURE TO PAY OVERTIME WAGES;
2. FAILURE TO PAY MINIMUM WAGES;
3. FAILURE TO PROVIDE MEAL PERIODS;
4. FAILURE TO PROVIDE REST PERIODS;
5. FAILURE TO PAY ALL WAGES UPON TERMINATION;
6. FAILURE TO PROVIDE ACCURATE WAGE STATEMENTS;
7. UNFAIR COMPETITION; and
8. CIVIL PENALTIES LABOR CODE § 2699(a).

Defendant RES II CA is a staffing agency based in Florida with a focus on placement in the light industrial, warehouse, and manufacturing industries. Defendant RES II CA acquired RES's paper assets on 7/20/2020, after RES defaulted on a loan, and a lender foreclosed on the note. RES II CA had and has no relationship with RES, and RES II CA denied any potential liability for RES due to the acquisition through foreclosure. One of RES's (and later RES II CA's) clients was Houdini, to which Plaintiffs and Settlement Class Members and members of PAGA Settlement Groups were assigned. Houdini is a purveyor of food and wine gift baskets based in Buena Park, where Plaintiffs were employed. In addition to sourcing employees from RES, and later RES II CA, Houdini also directly employed other non-exempt employees. Settlement Class Members and members of PAGA Settlement Groups were predominantly employed seasonally around the end of year holiday season. (See ROA #291 [Mot. for Prelim. Approval] at p. 2.)

On 12/12/2022, the parties attended mediation but were unable to settle the case. The parties thereafter resumed litigation while continuing settlement negotiations. Subsequently, as information relating to RES's insolvency and RES II CA's denial of any successor liability came to light, the parties agreed to the subject settlement, which was finally executed in February/March 2025. (See ROA #292 [Counsel Decl.], ¶ 14.)

On 7/9/2025, Plaintiffs filed the instant motion for preliminary approval of the class action and PAGA settlement, and submitted

the Joint Stipulation and Settlement Agreement and Class Notice for the Court's review. The Motion seeks preliminary approval of the parties' proposed settlement for the non-reversionary gross settlement amount (GSA) of \$750,000.

At the first hearing on the motion on 11/20/2025, the Court continued the matter so that the parties could address various issues identified by the Court. (ROA #307.) Class Counsel then submitted a redline of an Amended Joint Stipulation and Settlement Agreement and a redline of an amended Class Notice for the Court's review.

At the second hearing on the motion on 2/19/2026, the Court further continued the matter so that the parties could address various issues identified by the Court. (ROA #317.) Class Counsel then submitted a redline of a Second Amended Joint Stipulation and Settlement Agreement ("2nd Amended Settlement Agreement"), a further amended Class Notice, and an amended transmittal letter to the Houdini PAGA Settlement Group Members for the Court's review.

Based on a review of all papers submitted, including the 2nd Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

However, within five (5) court days, Class Counsel must (1) submit a fully executed copy of the 2nd Amended Settlement Agreement and (2) separately lodge a further amended Proposed Order that includes the ROA number of counsel's to-be-filed 4th supplemental declaration attaching the fully executed 2nd Amended Settlement Agreement.

The Motion for Final Approval will be heard on October 29, 2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a

		determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists. Additionally, at the Final Approval hearing, Plaintiffs and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement awards and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
111	Hernandez vs. Houdini, Inc. 2021-01212206	Status Conference CONTINUED TO 10/29/26 AT 2PM WITH #112; CMC statement to be filed 10 days in advance. Parties are to address effect of settlement re related RES CASE.
112	Gonzalez vs. Flood Management Services, Inc. 2024-01403048	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they fail to adequately address all the previously identified issues. Accordingly, Plaintiff Michael P. Gonzalez's Motion for Preliminary Approval of Class Action and PAGA Settlement is further CONTINUED to July 30 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 5/31/2024, Plaintiff Michael P. Gonzalez, individually and on behalf of all others similarly situated, filed a class action

complaint against Defendant Flood Management Services, Inc. (ROA #2.) Defendant answered on 8/7/2024. (ROA #14.)

The operative complaint is the first amended complaint, filed on 10/23/2024 pursuant to the parties' stipulation and the court's order, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #30.) Defendant answered on 11/22/2024. (ROA #34.)

On 9/23/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$275,000. The GSA includes \$20,000 allocated for PAGA penalties.

On 2/19/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. Counsel then submitted supplemental materials, including an amended version of the Class Action and PAGA Settlement Agreement ("Amended Settlement Agreement") and an amended Class Notice.

The Court has identified several issues with the supplemental papers, including the Amended Settlement Agreement. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted:

1. The parties added the following sentence to Paragraph 7.5.1 of the Amended Settlement Agreement: "The Court has final say on the validity and authority of any Requests for Exclusion." However, in ¶ 7.5.2, the following conflicting sentence remains: "The Administrator's determination shall be final and not appealable or otherwise susceptible to challenge."
2. The parties revised ¶ 7.8.4 of the agreement to delete the statement that "[t]he Administrator's decision shall be final and not appealable or otherwise susceptible to challenge" and to add that "[t]he Court may review any decision made by the Administrator regarding such dispute or may accept the Administrator's decision." However, in ¶ 7.6, the following conflicting sentence remains: "The Administrator's determination of each Class Member's allocation of Workweeks and/or Pay Periods shall be final and not appealable or otherwise susceptible to challenge."

Class Counsel must also provide the Court with a further revised Class Notice with the following revisions:

1. Although forms have been provided for opt-outs, objections, and workweek disputes, all forms state that they must be mailed to the administrator, even though the settlement agreement provides for fax and email as options. The administrator's fax number and email address must be provided on the forms.

Class Counsel must also provide a further revised Proposed Order with the following corrections and revisions:

1. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached, including the further amended settlement agreement that will be required to address the above-listed issues.
2. As this matter is being further continued, counsel must propose a new realistic Final Approval hearing date, again taking into account the deadlines associated with mailing and re-mailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). As a reminder, the Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.

Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance.

Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.

113	Lopez vs. Quick Crete Products Corp 2023-01355638	Motion for Preliminary Approval of Class/PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of a \$850,000 class action and PAGA settlement. The motion will be granted as follows: \$10,000 for plaintiff’s enhancement payment (not to exceed); \$283,333.33 for attorneys’ fees (not to exceed); \$27,000 for litigation costs (not to exceed); \$11,000 for settlement administration costs (not to exceed); and \$60,000 total PAGA penalties (\$45,000 to LWDA). The final approval hearing is scheduled for October 15, 2026 at 2:00 p.m. in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
114	Molle vs. Clear Vision Financial, LLC 2024-01433193	Motion for Final Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiffs’ Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Uriah Molle and Amin Asvadi’s Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On 10/15/2024, Plaintiffs Uriah Molle and Amin Asvadi, both individually and on behalf of all similarly situated aggrieved employees, filed a PAGA complaint against Defendant Clear Vision Financial, LLC d/b/a Liberty Financial, alleging a single cause of action for PAGA penalties. (ROA #2.) Defendant answered on 12/19/2024. (ROA #12.) On 10/2/2025, Plaintiffs filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court’s review the Settlement Agreement and Release of Private Attorneys General Act Claims and proposed notice/cover letter to aggrieved employees that will accompany the payments to them. The motion seeks approval of the parties’ proposed settlement of Plaintiffs’ PAGA claims for the non-reversionary gross settlement amount (GSA) of \$165,000.

At the first hearing on 2/19/2026, the Court continued the first hearing on the motion and asked counsel to address various issues. The Court also ruled as follows:

- The Court concluded that litigation costs should not include overhead or nonrecoverable items such as postage, and deducted from the requested amount \$22.15 for postage incurred on 8/5/2024 and 2/20/2025.
- The Court further concluded that an Enhancement Payment of \$5,000 per Plaintiff is fair, adequate, and reasonable for a settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case.

(ROA #70.)

Counsel then submitted supplemental materials, including an Amended and Restated Settlement Agreement and Release of Private Attorneys General Act Claims ("Amended Settlement Agreement") and an amended notice/cover letter to aggrieved employees that will accompany the payment to them.

Based on a review of all submissions made in support of the motion, the Court finds the settlement is fair and reasonable. As a result, the Court grants the Motion and approves the following disbursements and awards from the Gross Settlement Amount:

- Attorneys' fees totaling \$49,500.00 awarded to Plaintiffs' Counsel, Keegan & Baker LLP;
- Litigation costs totaling \$6,641.35 awarded to Plaintiffs' Counsel, Keegan & Baker LLP;
- Settlement administration costs of \$3,500.00 awarded to Simpluris, Inc.; and
- Enhancement Payments of \$10,000.00 total, with \$5,000.00 awarded to Plaintiff Uriah Molle and \$5,000.000 awarded to Plaintiff Amin Asvadi.

PAGA penalties in the amount of \$95,358.65 shall be allocated as follows: sixty-five percent (65%), or \$61,983.12, payable to the Labor and Workforce Development Agency (LWDA); and thirty-five percent (35%), or \$33,375.53, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement.

Within five (5) court days, Plaintiffs' Counsel must submit a further revised Proposed Order that lists the correct ROA number for the Supplemental Declaration of John J. Weber (ROA #79, not #71) in the first paragraph.

		The Final Accounting hearing is set for June 3, 2027 at 2PM in Department CX102. Plaintiffs' Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing. Plaintiffs to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
115	Chiem Saephan vs. Aspen Skilled Healthcare, INC. 2024-01394825	1. Motion for Final Approval of Class Settlement 2. Motion for Attorney Fees The Court has reviewed the supplemental materials provided by Class Counsel and finds that they do not adequately address the previously identified issues and/or that they raise additional issues that must be resolved before final approval of the class settlement may be granted. Accordingly, Plaintiffs Chiem Saephan, by and through his successor in interest James Saephan; Patricia Miller, by and through her successor in interest, Natalie Gianne; and Terry Joy, by and through his Attorney in Fact, Vickie Joy's Motion for Final Approval of Class Action Settlement and Motion for Award of Attorneys' Fees, Costs, and Service Awards (collectively, "Motion") are CONTINUED to June 18 at 2:00 p.m. in Department CX102 in order to give Class Counsel and the administrator an opportunity to address the issues identified below: 1. On 5/8/2026, Class Counsel filed a new 5th supplemental declaration from the administrator dated 4/22/2026 (ROA #284), which attests that the correct "total number of Opt-Outs is 335 including 2 from illegible submissions. The list attached as Exhibit B to [the administrator's] Fourth Supplemental Declaration contained the correct number of Opt-Outs." (ROA #284, ¶ 4 [referencing ROA #268, Exh. B].) However, the referenced Exhibit B (which is now also attached to the 3rd revised proposed order and judgment at ROA #282) does

not actually state that there are 2 “illegible” submissions— instead, it lists only one (1) submission (i.e., Claim No. 3363) as “Illegible print.” Thus, it appears that the administrator was able to associate the other “illegible” submission with a Class Member and has listed that Class Member by name in Exhibit B as having opted out. (The Court also notes that Exhibit B and its equivalent attached to the proposed order both incorrectly identify the provided names as “EmployeeName.”)

But why was this “illegible” submission not listed as “Illegible print” but was instead listed using a Class Member’s name? Also, how did the administrator associate that “illegible” submission with a name? Is it based on the claim number assigned to that Class Member as indicated on the Class Notice Packet, including the opt-out request form that was then used to submit the opt-out request? If so, why was this same association not made for Claim No. 3363, but instead, Claim No. 3363 was listed as just “Illegible print”?

Accordingly, the Court orders the administrator to both (1) provide a written explanation as to the 2 allegedly “illegible” submissions and (2) provide copies of both opt-out request forms that the administrator received and considered to be “illegible” so that the Court may independently review these forms.

2. The administrator’s 5th supplemental declaration also attests that her previous 4th supplemental declaration incorrectly stated that there were 57 objections when there were only 56. (ROA #284, ¶ 5.) In addition, the administrator declares that as of the date of her 5th supplemental declaration, i.e., 4/22/2026, “2 of those Objections have since been withdrawn for Salvador Martinez and Arletta Shenefield. The attorneys have agreed to honor a late claim for both Class Members. As a result, the total number of Objections is now 54.” (*Id.*) Counsel confirms this in his 4th supplemental declaration filed on 5/8/2025. (ROA #288, ¶ 5.)

However, previously, the administrator submitted declarations attesting that as of various dates, the following numbers of Class Members will receive the following types of settlement payments:

- As of 11/3/2025:
 - 2,711 “current residents” will automatically receive \$250 each;
 - 50 presumably living, former residents who have submitted valid claims will receive \$225 each; and
 - Zero (0) successors of former residents have submitted claims. (ROA #195, ¶¶ 9-11.)
- As of 12/2/2025:

- 2,453 current residents will automatically receive \$250 each;
- 55 living, former residents who have submitted valid claims and will receive \$225 each; and
- Zero (0) successors of former residents have submitted claims. (ROA #200, ¶¶ 6-8.)
- As of 1/12/2026:
 - 2,385 current residents will automatically receive \$250 each;
 - 4,599 living, former residents who have submitted valid claims and will receive \$225 each; and
 - 126 successors who have submitted valid claims and will receive \$125 each. (ROA #215, ¶¶ 7-9.)
- As of 2/5/2026:
 - 2,386 current residents will automatically receive \$250 each;
 - 4,606 living, former residents who have submitted valid claims and will receive \$225 each; and
 - 126 successors who have submitted valid claims and will receive \$125 each. (ROA #230, ¶¶ 9-11.)

The administrator's declarations raises 2 issues:

- a. First, although the parties have now accepted 2 additional late claims from Martinez and Shenefield after the administrator's 2/5/2026 declaration, neither the administrator nor Class Counsel has attested to the category of claims/payments Martinez's and Shenefield's claims fall under (i.e., current residents who will receive \$250 payments; former residents who are living and will receive \$225 payments; or successors who will receive \$125). Therefore, the moving papers have not provided the Court with final, updated numbers on how many Class Members will receive each type of payment under the settlement—which is also information that must be included in the order granting final approval.
- b. Second, the administrator's declarations have attested to different numbers of "current residents" over time without explanation as to why this number has changed and what has happened to the claims of those Class Members who were once deemed "current residents" but are not longer part of the most recent count of "current residents" according to the administrator's declarations. Notably, the definition for "Current Residents" in the Settlement Agreement is "the residents who reside in Covered Facilities *at the time of Preliminary Approval at the time of distribution*" (emphasis added). Given that the time of Preliminary Approval and the time of distribution are two

different times, the Court orders Class Counsel to provide clarification as to the definition of "Current Residents" as set forth in the Settlement Agreement and how that definition has been applied by the parties and the administrator to determine which Class Members will receive the automatic \$250 payments versus which Class Members must submit claim forms to receive a settlement payment. Class Counsel must also confirm whether any Class Member, who was once deemed by the administrator to be a "current resident" but who is no longer counted by the administrator, has been denied the ability to submit a claim for payment as a former resident instead.

3. The Court has reviewed the 54 objections submitted by Class Counsel as part of the updated Exhibit D filed on 5/8/2026 at ROA #288. The Court is inclined to rule on the objections, as follows:

- Twenty-five (25) respondents submitted an objection form but did not provide any information as to the basis for their objection. (Sub-Exhs. D-2, D-3, D-8, D-9, D-13, D-14, D-16, D-17, D-22, D-23, D-28, D-29, D-31, D-32, D-34, D-35, D-41, D-43, D-45, D-46, D-47, D-48, D-49, D-50, D-54.) The Court **OVERRULES** these objections as containing insufficient information.
- Five (5) respondents submitted statements praising the facilities and/or the care received. (Sub-Exhs. D-1, D-4, D-5, D-12, D-27.) The Court considered these objections but **OVERRULES** them.
- Five (5) respondents objected that the settlement amount is too low. (Sub-Exhs. D-7, D-15, D-25, D-26, D-38.) The Court considered these objections but **OVERRULES** them.
- Five (5) respondents submitted statements that corroborated Plaintiffs' allegations of staffing shortages. (Sub-Exhs. D-6, D-18, D-37, D-42, D-44.) The Court considered these objections but **OVERRULES** them.
- Thirteen (13) respondents submitted objections raising other issues with the facilities not explicitly related to staffing shortages (e.g., poor treatment by staff). (Sub-Exhs. D-11, D-19, D-20, D-21, D-24, D-30, D-33, D-36, D-39, D-40, D-51, D-52, D-53.) The Court considered these objections but **OVERRULES** them.
- One final "objection" was submitted by Ruth Nemetz, who submitted an objection form, but all she wrote in the space provided for expressing her objection was: "I respectfully decline settlement." (Sub-Exh. D-10.) Substantively, this is not an objection, despite it being submitted on an objection form. Accordingly, the Court **OVERRULES** this objection.

		Counsel is ordered to update the proposed order and judgment at ¶ 10 to incorporate these tentative rulings. Class Counsel must file supplemental papers addressing the Court's concerns no later than nine (9) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiffs are ordered to give notice of this Court's ruling within five (5) court days, and file proof of service.
116	Gonzalez vs. Gold Coast Bakeries LLC. 2021-01184280	Motion for Preliminary Approval of Class/PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$250,000 class action and PAGA settlement. The court has the following questions and comments: 1. Were the supplemental papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The court's 04-10-2025 minute order stated the "parties must provide an estimate of the total number of workweeks in the Covered Period." ROA 119. The number provided by defendant at mediation, even if the date of mediation was identified, which it is not, does not resolve this issue. 3. The court's 04-10-2025 minute order stated the "deadline for submission of requests for exclusion, objections, and disputes should be 60 days after the mailing of the Class Notice." ROA 119. In addition to the changes already made, the definition of "Document Receipt Deadline" remains 30 days, which is thus inconsistent with those changes. Settlement § I(k). The definition should reflect 60 days.

4. Insert a comma between "Settlement Agreement" and "Class Notice." Settlement § VII(22)(n). The same change should be made in the notice (§ VIII).

As to the proposed order:

5. The ROA number of the settlement must be corrected. The notice (and Spanish translation) should be identified and attached as an exhibit to the proposed order.
6. The final approval hearing should be proposed for a Thursday at 2:00 p.m. in Department CX102. The proposed order (§ 8(f)) should be corrected.

Other issues:

7. The court's 04-10-2025 minute order identified several "other" issues for the parties to address. ROA 119. None of the "other issues" identified as nos. 18-21 have been addressed, i.e., (18) Counsel must provide information regarding the average Individual Settlement Payment and Individual PAGA Payment; (19) Counsel must provide estimate of number of PAGA Group Members; (20) Counsel must attest as to the fee-splitting arrangement with co-counsel and how any award of attorneys' fees is to be allocated; (21) Counsel must attest as to whether there are any concurrent pending cases against Defendant that may impact the settlement.).

The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is **continued to August 6, 2026, at 2:00 p.m. in Department CX102** to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 16 court days before the hearing and shall address as necessary each of the above points. The parties shall also provide redlined copies of any revised documents.

Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.

117	Navarro Arevalo vs. Gold Coast Baking Company, Inc. 2022-01243370	Status Conference Continued to August 6, 2026, at 2:00 p.m. in Department CX102 CMC statement to be filed 10 days in advance. Parties are to address effect of settlement re related Gonzales matter.
118	Lopez vs. Atrium Hospitality LP 2022-01245971	Motion for Final Approval Plaintiff's motion for final approval is CONTINUED to July 9, 2026 at 2:00 p.m. in Department CX102 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed 16 court days prior to the hearing. Redlines showing all changes, deletions, and additions must also be submitted. In addition, Plaintiff must provide proof of service of any revised supporting papers on the LWDA. 1. What is the amount of the lowest estimated individual PAGA award? 2. What are the amounts of plaintiff's individual class and PAGA awards? 3. All cost items for mailings, postage, copying, and faxes should be removed as the court does not reimburse such costs. ROA 161 Ex. D. Furthermore, the court requires submission of supporting documentation for the mediation fee. Additionally, counsel should explain to what the numerous charges for "Janney & Janney" pertain. Id. <u>As to the Proposed Order:</u> 4. The title of the document and the footer should reflect "Proposed Order Granting Final Class Action and PAGA Settlement Approval and Judgment." ROA 164. 5. Identify the operative settlement by ROA number. ROA 164 ¶ 1. 6. Include the releases and their operative dates. ROA 164 ¶¶ 14-15.

		7. Propose a realistic date in 2027 for a final accounting hearing, which the court hears on Thursdays at 2:00 p.m. ROA 164 ¶ 16. 8. Specify that notice shall also be given to the LWDA. ROA 164 ¶ 19. 9. Delete paragraph 20. ROA 164. Plaintiff to give notice of this court's ruling, including to the LWDA, within 10 calendar days, and file proof of service.
119	Medicredit Wage and Hour Cases JCCP 5269	1. Motion to Deny Class Certification 2. Motion to Certify Class 3. Trial Setting Conference The Court has reviewed the parties' supplemental filings made in response to the Court's 4/9/2026 minute order. The Court CONTINUES the parties' cross-motions on class certification to July 2 at 2:00 p.m. in Department CX102 and ORDERS Plaintiff to submit a revised proposed Class Notice consistent with this ruling. This ruling (1) addresses all issues raised in the parties' supplemental filings in response to the Court's 3/17/2026 and 4/9/2026 minute orders and (2) supplements the Court's previous 3/17/2026 minute order ruling on the parties' cross-motions for class certification. 1. Plaintiff's Adequacy Declaration The Court has considered Defendants' objections (ROA #580) to Plaintiff's adequacy declaration submitted at ROA #566. The Court OVERRULES all objections because Defendants' arguments all go more to the weight of the evidence as to admissibility, and Defendants' cited authorities about discovery admissions controlling over contrary declarations lodged at the hearing in the summary judgment context do not apply here on a motion for class certification. The Court notes that at Plaintiff's deposition on January 23, 2025, Plaintiff stated, "I don't understand that" in response to the question, "[D]o you understand that you're attempting to act as a class representative to represent other employees?" (ROA #575, Lu Decl., Exh. 1 at p. 35:21-24; see also <i>id.</i> at p. 35:25-37:10 [similar].) This does contradict ¶ 3 of Plaintiff's adequacy declaration signed on 3/25/2026, which states that "[w]hen [she] first retained [her] attorneys (Lauby, Mankin & Lauby), [she]

chose to pursue this wage & hour case on a class action basis rather than as an individual claim. In that regard, [she] understood that [she] had specific burdens as the 'Class Representative[]'" (ROA #566, ¶ 3.)

However, sometime between her deposition on 1/23/2025 and now, Plaintiff could have updated her understanding as to the nature of this action such that she now "understand[s] that . . . [she] seek[s] to represent employees who were subject to the same policies and practices"; "understand[s] that [she] will be representing not only [her]self, but employees with similar claims"; "understand[s] that to recover, it will be necessary to prove that employees were not properly paid for all hours worked and/or received inaccurate wage statements"; and "understand[s] [her] duties and responsibilities to the proposed class and will carry out those duties as necessary." (*Id.* at ¶¶ 5, 10.)

Therefore, the Court **FINDS** that Plaintiff's 3/25/2026 declaration suffices to establish her adequacy for class certification purposes.

Additional issues relating to Plaintiff's adequacy are addressed below as part of the Court's ruling on the class to be certified.

2. Class Definition

The Court **APPROVES** the following class definition for Plaintiff's "inclusive dates" wage statement claims as to which the Court granted class certification per the Court's 3/17/2026 minute order:

All current and former non-exempt employees who (1) were employed by Medicredit, Inc. and/or Parallon Revenue Cycle Services, Inc. in California, (2) received a wage statement reflecting one or more 'BonRetOT' payments at any time from April 23, 2020 to the date of class certification, and (3) seek to recover not actual damages but only the statutory penalty provided in California Labor Code section 226, subdivision (e)(1).

a. Inclusion of Defendant Parallon

The Court rejects Defendants' objections to the inclusion of Defendant Parallon in the class definition. Nowhere in Defendants' 55 pages of briefing on the parties' original cross-motions regarding class certification did Defendants ever attempt to differentiate between Defendants Medicredit and Parallon or make any arguments about Parallon specifically.

In fact, Defendants' briefing explicitly chose to group Medicredit and Parallon together as "Defendants" while excepting Defendant HCA from this definition so that Defendants could separately

argue that since Plaintiff was not employed by HCA, Plaintiff's claims against HCA were not typical. (See, e.g., ROA #453, Def.'s Mot. P&A, at p. 1 ["Plaintiff Deborah Heins ('Plaintiff') filed a proposed class action against Medcredit, Inc. ('Medcredit'), Parallon Revenue Cycle Services, Inc. ('Parallon') (collectively 'Defendants'), and HCA Health Services of California, Inc. ('HCA') . . ."]; ROA #534, Def.'s Opp., at p. 1 [Plaintiff Deborah Heins ('Plaintiff') moves for class certification against Medcredit, Inc. ('Medcredit'), Parallon Revenue Cycle Services, Inc. ('Parallon') (collectively 'Defendants'), and HCA Health Services of California, Inc. ('HCA') . . .].)

Given that Defendants' original briefing never once argued that Plaintiff's claims against Parallon do not meet class certification requirements, the Court treats this argument as waived. (*Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [when a party "fails to raise a point," the point is "waived"].)

b. Plaintiff's Proposed "Or Similar Retroactive True-Up Payments" Language

Plaintiff's original motion for class certification contended that "Plaintiff's wage statement claim is based on Defendants' policies and practice of issuing wage statements . . . [that] omitted inclusive dates (for which retroactive overtime payments were earned)." (ROA #443, Pl.'s Mot. P&A, at p. 18.) Plaintiff's original reply brief also pointed out that "Labor Code section 226(a) explicitly requires wage statements to show 'the inclusive dates of the period for which the employee is paid.' This requirement applies to all forms of compensation, including bonuses." (ROA #550, Pl.'s Reply, p. 9.)

However, in support of this "inclusive dates" claim, Plaintiff submitted only her expert's observation that:

According to Heins' PDF wage statements, "BonRetOT" was paid as a presumed true-up for underpayments of overtime on bonuses earned in an earlier period when overtime was worked. This type of payment requires a recalculation of the regular rate of pay for purposes of paying overtime. In the seven pay periods reflected in Heins' wage statements where BonRetOT was paid, there was no indication of which prior period the retroactive overtime applied (see MEDICREDIT 000030, 32, 57, 59, 61, 63, and 65).

. . . Across the Wage Statement Period, 139 of 213 employees (65.3%) were paid BonRetOT, affecting 985 of 12,886 pay periods (7.6%).

(ROA #449, Exh. A [Anello Decl.], ¶¶ 23-24.)

Plaintiff now seeks to define the class as follows:

All current and former non-exempt employees who were employed by Medicredit, Inc. and/or Parallon Revenue Cycle Services, Inc. in California at any time from April 23, 2017 to the resolution of the action and received a wage statement reflecting a “BonRetOT” payment, *or similar retroactive true-up payment*.

(Emphasis added.)

Plaintiff’s supplemental brief contends that her proposed definition includes the phrase “or similar retroactive true-up payment” in order to “clarify the meaning of Defendants’ internal payroll code for Class members and to ensure that the class definition captures any functionally equivalent payments regardless of how Defendants labeled them.” (ROA #568, Pl.’s Supp. Br., p. 1.)

Defendants seek to limit the class definition to apply to *only* those “employees who received wage statements . . . that reflected one or more ‘BonRetOT’ payment(s).” (ROA #577, Def.’s Supp. Br., pp. 2, 4.) Defendants point out that Plaintiff’s proposed phrase “similar retroactive true-up payments” is “a subjective label that provides no objective basis for identifying class members.” (*Id.* at p. 2.)

While Plaintiff’s “inclusive dates” claim theoretically should not be limited based on Defendants’ specific use of one type of internal payroll code, ultimately, despite having years to conduct discovery in this case, Plaintiff apparently has not identified any other relevant payroll code to include in her proposed class definition.

Moreover, “the threshold requirement of ascertainability for class certification is satisfied when the class is defined in terms of objective characteristics and common transactional facts that make the ultimate identification of class members possible when that identification becomes necessary. We regard this standard as including class definitions that are sufficient to allow a member of the class to identify himself or herself as having a right to recover based on the class description.” (*Sarun v. Dignity Health* (2019) 41 Cal.App.5th 1119, 1132-1133, internal quotes & brackets omitted, quoting *Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 980.) “In attempting to define an ascertainable class, the goal is to use terminology that will convey sufficient meaning to enable persons hearing it to determine whether they are members of the class plaintiffs wish to represent.” (*Global Minerals & Metals Corp. v. Super. Ct.* (2003) 113 Cal.App.4th

836, 858.) Thus, a class definition must be “precise, objective and presently ascertainable.” (*Id.*, internal quotes omitted.)

Here, if the class were defined to include “or similar retroactive true-up payment,” it would be difficult for class members to easily, objectively identify themselves as having a right to recover. How would an employee hearing this description know whether another code appearing on their wage statement is similar or not similar to “BonRetOT”? Who would decide similarity?

Therefore, the Court declines to include the phrase “or similar retroactive true-up payment” in the approved class definition.

c. Applicable Statute of Limitations

The parties also dispute whether the start date of the class period should be April 23, 2017 (as Plaintiff contends) or April 23, 2020 (as Defendants contend).

Defendants’ contention that only a one-year statute of limitations applies to Plaintiff’s wage statement claim under Labor Code section 226 is based on three basic arguments: (1) Labor Code section 226, subdivision (e)(1) should be construed to provide only recovery for penalties, not damages; (2) Plaintiff’s complaint seeks only penalties, not damages; and (3) any pursuit of actual damages would render the class wholly unmanageable.

Defendants’ first two arguments lack merit. However, the Court agrees that Plaintiff has failed to satisfy her burden of proving manageability as to her inclusive dates wage statement claim to the extent such a claim seeks to recover actual damages instead of statutory penalties.

i. Statutory Construction

Labor Code section 226, subdivision (e)(1) provides:

An employee suffering injury as a result of a knowing and intentional failure by an employer to comply with subdivision (a) is entitled to recover the greater of all actual damages or fifty dollars (\$50) for the initial pay period in which a violation occurs and one hundred dollars (\$100) per employee for each violation in a subsequent pay period, *not to exceed an aggregate penalty of four thousand dollars (\$4,000)*, and is entitled to an award of costs and reasonable attorney's fees.

(Emphasis added.)

Defendants contend that the italicized clause providing for an aggregate cap on “penalty” qualifies both “actual damages” and

"penalties," thereby rendering all recoverable amounts "penalties" subject to a one-year statute of limitations. (Def.'s Supp. Br., p. 3.) In support, Defendants cite *White v. County of Sacramento* (1982) 31 Cal.3d 676, and the "last antecedent rule." However, *White* also went on to note that exceptions to the "last antecedent rule" exist and that "the fundamental rule that a court is to construe a statute 'so as to effectuate the purpose of the law.'" (*Id.* at p. 681.) Here, by permitting employees to recover "the greater of all actual damages or" the prescribed penalties indicates that the purpose of the law is to allow employees to recover actual damages *or* the prescribed penalties.

Also, the phrase "fifty dollars (\$50) for the initial pay period in which a violation occurs and one hundred dollars (\$100) per employee for each violation in a subsequent pay period" does not use the word "penalty." Thus, the use of the term "penalty" in the subsequent phrase "not to exceed an aggregate penalty of four thousand dollars (\$4,000)" may properly be construed to simply provide a label for the \$50/\$100 described in the previous clause—as opposed to the word "penalty" applying to all the antecedents that came before it, including "actual damages."

Indeed, numerous federal courts in California that have considered the issue of which statute of limitations applies to Section 226(e)(1) claims have concluded that the three-year statute of limitations under Code of Civil Procedure (CCP) section 338 applies where a plaintiff's claim seeks actual damages, while the one-year statute of limitations under CCP section 340 applies where a plaintiff's claim seeks penalties—and that "a single claim under Cal. Lab. Code § 226 may be subject to two different limitation periods based on the nature of the relief sought has been recognized by many district courts." (*Hassan v. Praxair, Inc.* (C.D.Cal. Mar. 4, 2019, No. LA CV18-02811 JAK (AFMx)) 2019 WL 3064435, at *4, citing numerous cases; see also *Novoa v. Charter Communications, LLC* (E.D.Cal. 2015) 100 F.Supp.3d 1013, 1024-1025 ["The plain language of California Labor Code Section 226 provides for both actual damages and penalties," and "[d]istrict courts that have recently confronted the issue have come to the same conclusion . . . recognizing that two limitations periods could apply to a claim under Section 226 because it authorizes damages and penalties"].)

Defendants contend that these federal district court decisions should be given no weight because (1) the California Supreme Court in *Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1118, fn. 16 stated that violations of section 226(a) are "undisputedly governed by a one-year statute of limitations" and (2) there is an Assembly analysis that refers to "a penalty of

actual damages or \$100, whichever is greater.” (Def.’s Supp. Br. at p. 3.)

These two arguments also lack merit. First, the full context for the California Supreme Court’s quoted statement in footnote 16 of *Murphy* is: “Murphy’s claim for itemized wage statement violations, although undisputedly governed by a one-year statute of limitations, was accordingly timely.” (*Murphy, supra*, 40 Cal.4th at p. 1118, fn. 16.) Nothing in the opinion explains whether Murphy’s claim was only for penalties or was also for actual damages. Thus, it does not appear that the Court considered the issue of whether Murphy’s claim was for actual damages such that the three-year statute of limitations is applicable. If anything, a different comment in the Court’s opinion in *Murphy* indicates that the Court considered only the \$50/\$100 provisions of Labor Code section 226(e) as providing for “penalties.” (*Id.* at p. 1108 [“In section 226, the Legislature imposed a penalty on employers who fail to provide itemized wage statements that comply with the Labor Code. (§ 226, subd. (e) [\$50 for initial violation, \$100 for subsequent violations].)”].)

Second, “resort to legislative history is appropriate only where statutory language is ambiguous. (*Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 29, also quoting *Hunt v. Super. Ct.* (1999) 21 Cal.4th 984, 1000, internal citations omitted [“Our role in construing a statute is to ascertain the Legislature’s intent so as to effectuate the purpose of the law. In determining intent, we look first to the words of the statute, giving the language its usual, ordinary meaning. If there is no ambiguity in the language, we presume the Legislature meant what it said, and the plain meaning of the statute governs”].) Here, the language of Labor Code section 226(e)(1) is not ambiguous: “The plain language of California Labor Code Section 226 provides for both actual damages and penalties.” (*Novoa, supra*, 100 F.Supp.3d at p. 1024.) Therefore, the Court need not resort to legislative history.

Accordingly, because Labor Code section 226(e)(1) provides for recovery of either actual damages or penalties, the three-year statute of limitations under CCP section 338 applies where a plaintiff’s claim seeks actual damages, while the one-year statute of limitations under CCP section 340 applies where a plaintiff’s claim seeks penalties.

ii. Plaintiff’s Complaint

Accordingly, the next issue is whether Plaintiff’s complaint seeks actual damages, penalties, or both.

Defendants first contend that Plaintiff's complaint seeks only penalties because it proposes a "Wage Statement *Penalties Subclass*" and seeks "*applicable penalties*," citing ¶¶ 73 and 76 of the complaint. (Def.'s Supp. Br. at p. 3.) However, ¶ 73 alleges, in relevant part:

Plaintiff, the Represented Employees and the Wage Statement Penalties Subclass have suffered and continue to suffer, substantial losses related to the use and enjoyment of such wages, lost interest on such wages and expenses and attorney's fees in seeking to compel Defendants to fully perform its obligation under state law, all to their respective *damages* in amounts according to proof at trial

(Emphasis added.) As for ¶ 76, it alleges:

Labor Code § 226(e) requires Defendants to pay *the greater of all actual damages or fifty dollars (\$50.00) per employee for the initial pay period in which a violation occurred, and one hundred dollars (\$100.00) per employee for each violation in subsequent pay periods, plus attorney's fees and costs, to Plaintiff, the Represented Employees and the Wage Statement Penalties Subclass who were injured by Defendants' failure to comply with Labor Code § 226(a). The exact amount of the applicable penalty is all in an amount to be shown according to proof at trial.*

(Emphasis added.)

Furthermore, in the complaint's prayer for relief, Plaintiff prays for the following, in relevant part:

6. For all applicable statutory penalties recoverable under the First through Sixth Causes of Action to the extent permitted by law, including those pursuant to Labor Code and Orders of the Industrial Welfare Commission; . . .

10. For an award of *damages* in the amount of unpaid compensation including, but not limited to, unpaid wages, benefits, and penalties according to proof, including interest thereon;

(Emphasis added.)

Fairly read, the complaint does not seek only penalties, as Defendants contend, but rather seeks actual damages or penalties, whichever is greater, according to proof at trial. Therefore, the three-year statute of limitations under CCP section 338 applies to the extent Plaintiff or any member of the class seeks actual damages, while the one-year statute of limitations

under CCP section 340 applies to the extent Plaintiff or any member of the class seeks the \$50/\$100 (up to \$4,000) penalties.

iii. Manageability

In Defendants' first round of supplemental briefing submitted after the Court's 3/17/2026 minute order, Defendants also contended that any pursuit of actual damages would "render the class wholly unmanageable" because "[e]ach member would need to testify individually on the actual injury from the alleged omission of inclusive date, and if so, the amount of damages." (Def.'s Supp. Br. at p. 4.) Defendants contended that "[t]his testimony cannot be supplied through expert analysis or statute-based calculations." (*Id.*) Therefore, "[a]t an estimated two hours per class member, this would require 300 hours of trial testimony for the 139 individuals identified in Anello's declaration." (*Id.*) Thus, "[s]hould Plaintiff persist in this theory, Defendants respectfully request[ed] supplemental briefing on the issue of her adequacy and manageability of this claim." (*Id.*, emphasis omitted.)

As the Court previously stated in its 3/17/2026 ruling, "[a]s a general rule if the defendant's liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages." (*Brinker Restaurant Corp. v. Super. Ct.* (2012) 53 Cal.4th 1004, 1022, internal quotes omitted; see also *Kizer v. Tristar Risk Management* (2017) 13 Cal.App.5th 830, 841-842 ["ordinarily, class treatment of a claim is appropriate if the facts necessary to establish liability are capable of common proof, including the so-called fact of damage, that is, the existence of harm establishing an entitlement to damages. If the defendant's liability can be determined by facts common to all members of the class, a class may be certified even though class members must individually establish the amount of their damages"], 843 ["the fact of damage is a liability issue that focuses on the existence of harm establishing a plaintiff's entitlement to damages; it is not concerned with the amount of damages"].)

However, "[t]rial courts must [also] pay careful attention to manageability when deciding whether to certify a class action," and "the manageability of individual issues is just as important as the existence of common questions uniting the proposed class." (*Duran v. U.S. Bank National Assn.* (2014) 59 Cal.4th 1, 29.)

While courts have generally recognized that it is not "a bar to certification that individual class members may ultimately need to itemize their damages," it is nevertheless "one factor to be considered in determining whether a class action is proper."

(*Sav-On Drug Stores, Inc. v. Super. Ct.* (2004) 34 Cal.4th 319, 334-335, internal quotes omitted.) Ultimately, “[i]ndividual issues do not render class certification inappropriate *so long as such issues may effectively be managed.*” (*Id.* at p. 334, emphasis added.)

Thus, in the Court’s 4/9/2026 minute order, the Court stated:

Because Plaintiff’s complaint and supplemental briefing confirm that for Plaintiff’s Labor Code section 226 claim, Plaintiff seeks actual damages or penalties, whichever is greater, according to proof at trial, the Court is concerned about the manageability of individual issues relating to proving the amount of each class member’s actual damages to the extent they seek to recover damages rather than penalties.

While the Court’s previous ruling on 3/17/2026 rejected Defendant’s arguments on whether liability and injury or fact of damage are issues in which common or individual questions predominate [referring to wage statement claims], the parties have not sufficiently briefed nor has the Court fully considered whether individual issues relating to proof of amount of actual damages may be effectively managed.

. . .

Thus, the question remains: Can the individual issues relating to proving the amount of each class member’s actual damages be effectively managed such that “the issues which may be jointly tried, when compared to those requiring separate adjudication, justify the maintenance of the suit as a class action”?

(ROA #587, internal citation omitted.) Accordingly, the Court ordered the parties to submit supplemental briefing on this narrow manageability issue. (*Id.*)

Plaintiff, in essence, has not answered the question posed.

As Defendants point out, Plaintiff’s original trial plan submitted in support of Plaintiff’s motion for class certification did little more than propose a bifurcated proceeding in which liability would be tried first, followed by damages. (ROA #445.) In that trial plan, Plaintiff explicitly contended “because individual issues with respect to the amount of damages do not preclude certification, Plaintiff does not believe it is necessary or appropriate to submit a detailed trial plan with respect to Stage II at this time.” (*Id.* at p. 3, fn. 3.) Therefore, Plaintiff’s initial trial plan did not address this issue.

After the Court ordered explicit supplemental briefing on manageability of trial on damages issues, Plaintiff still did not propose any sort of trial plan to demonstrate manageability. Instead, the only sentence in Plaintiff's 10-page supplemental brief filed on 5/8/2026 that could even be remotely considered as a trial plan is: "Thus, proposed procedures for managing the determination of damages is to establish an opt-in procedure for or surveys pertaining to actual damages or a statistical sample for the average lost wages among similarly situated subclasses." (ROA #596 at p. 5.) Plaintiff provides zero explanation or detail on these vague procedures referenced in this one sentence.

As the Supreme Court has held, "[c]lass certification is appropriate only if these individual questions can be managed with an appropriate trial plan." (*Duran, supra*, 59 Cal.4th at p. 27.) "If statistical evidence will comprise part of the proof on class action claims, the court should consider *at the certification stage* whether a trial plan has been developed to address its use. A trial plan describing the statistical proof a party anticipates will weigh in favor of granting class certification if it shows how individual issues can be managed at trial. Rather than accepting assurances that a statistical plan will eventually be developed, trial courts would be well advised to obtain such a plan before deciding to certify a class action." (*Id.* at pp. 31-32, italics original; see also *Modaraei v. Action Property Management, Inc.* (2019) 40 Cal.App.5th 632, 644 [affirming trial court's rejection of Plaintiff's proposal to conduct statistical analysis *after* class certification because "'a promise to conduct a statistical analysis in the future is not a trial plan'"].)

"In general, when a trial plan incorporates representative testimony and random sampling, a preliminary assessment should be done to determine the level of variability in the class. If the variability is too great, individual issues are more likely to swamp common ones and render the class action unmanageable." (*Id.* at p. 33, internal citation omitted.) In *Duran*, the high court held that because "[n]o such assessment was done," the statistical plan adopted for trial was "flawed" because it "did not manage but instead ignored individual issues." (*Id.*)

Here, Plaintiff does not even remotely attempt to propose a trial plan for damages issues, much less a manageable one.

Plaintiff bears the burden of proof on establishing all requirements for class certification by admissible evidence. (*Soderstedt v. CBIZ Southern Cal., LLC* (2011) 197 Cal.App.4th 133, 154-155.) Manageability is one such requirement. (See *Duran, supra*, 99 Cal.4th at pp. 28-29 ["Although predominance

of common issues is often a major factor in a certification analysis, it is not the only consideration. In certifying a class action, the court must also conclude that litigation of individual issues, including those arising from affirmative defenses, can be managed fairly and efficiently. . . . Trial courts must pay careful attention to manageability when deciding whether to certify a class action. In considering whether a class action is a superior device for resolving a controversy, the manageability of individual issues is just as important as the existence of common questions uniting the proposed class.”].)

The Court finds that Plaintiff has failed to carry this burden of proof with respect to claims *for actual damages* for Plaintiff’s inclusive dates wage statement claim. However, the Court finds that Plaintiff has sufficiently carried her burden of proof for her inclusive dates wage statement claim *to the extent the claim seeks recovery of statutory penalties under Labor Code section 226, subdivision (e)(1)*.

Notably, in Plaintiff’s second supplemental brief filed on 5/8/2026, Plaintiff proposed that “[i]n the alternative, the Court should certify the one-year penalties wage statement class” and proposes a class period start date of 4/23/2020. (ROA #596 at p. 9.) Defendants characterize this alternative proposal as a “telling concession that the actual-damages framework is unmanageable.” (ROA #598 at p. 6.) In any case, Defendants appear to agree that if the Court does not deny class certification altogether, “the Court should narrow the class to a penalties-only theory with a one-year statute of limitations.” (ROA #598 at p. 6.)

Based upon Plaintiff’s contention that a penalties-only wage statement class would be subject to a one-year statute of limitations, Plaintiff appears to have conceded that she has no applicable derivative UCL claim (to which a four-year statute of limitations would apply). Presumably, this concession is based upon the rule that statutory penalties cannot be recovered as restitution under the UCL. (*Pineda v. Bank of America, N.A.* (2010) 50 Cal.4th 1389, 1402.)

Previously, the Court’s 3/17/2026 minute order stated that the Court was inclined to “GRANT IN PART Plaintiff’s motion for class certification and DENY IN PART Defendant’s motion to deny class certification and/or strike class allegations, *as to Plaintiff’s “inclusive dates” wage statement claim and any derivative claims based upon that theory.*” (ROA #560, italics original, bolding omitted.) Thus, the Court now **UPDATES** its 3/17/2026 ruling to clarify that the granting of Plaintiff’s motion for class certification (and the corresponding denial of Defendants’ motion to deny

class certification) applies only to Plaintiff's Labor Code section 226 claim *but does not apply to any derivative UCL claim.*

Also, to confirm, although the California Supreme Court has held that a plaintiff may be deemed an inadequate class representative where the plaintiff seeks only one type of remedy by her claim and therefore waives recovery of other remedies to which class members would be entitled (*City of San Jose v. Super. Ct.* (1974) 12 Cal.3d 447, 464), *a trial court may nevertheless certify a class that seeks only one type of remedy but not others so long as adequate notice is provided to all class members about the waiver of additional remedies with an opportunity to opt out (see Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 925-926 [dicta] ["[t]here are several ways in which the trial court could certify a class without waiving the right of class members with [different damage claims] to recover for that damage," including "for the trial court to use the class notice procedure to give those class members with property damage the opportunity to opt out of the class"]; *Anthony v. General Motors Corp.* (1973) 33 Cal.App.3d 699, 704 [reversing trial court's denial of class certification just because plaintiffs' prayer for relief sought only one type of damages, reasoning that "[a]n order for notice . . . can be drawn as to warn those members of the class defined in the complaint of the risk they run by remaining as participants; if they knowingly assume that risk; no one else can complain"]; see also *Evans v. Lasco Bathware, Inc.* (2009) 178 Cal.App.4th 1417, 1433-1434 [affirming trial court's finding that the notice procedure suggested by the *Hicks* dicta would not be feasible under the circumstances of *Evans* because "a class member could not determine whether he or she had suffered such additional damages" and thus, "even if the class notice provided a potential member with sufficient information on the reasons he or she might wish to opt out of the class (e.g., to preserve a claim for additional damages), the class member here (unlike potential class members in *Hicks*) could not readily decide whether to opt out of the class but could only make that decision after engaging in destructive testing"]).

In sum, under this line of cases, if the relevant claim is one for which class members can readily determine whether they have suffered additional damages and can therefore readily decide whether to opt out of the class to pursue additional or different remedies, then the plaintiff's pursuit of only one type of remedy while forfeiting others is not a bar to class certification so long as the notice provided to the class members adequately warns of the risk of such forfeiture.

Here, the relevant claim is one under Labor Code section 226 relating to inadequate wage statements. The notice to class

members can easily inform them—and, indeed, must inform them—that if Defendants are found to be liable under this section, each class member is “entitled to recover the greater of all actual damages or fifty dollars (\$50) for the initial pay period in which a violation occurs and one hundred dollars (\$100) per employee for each violation in a subsequent pay period, not to exceed an aggregate penalty of four thousand dollars (\$4,000), and is entitled to an award of costs and reasonable attorney’s fees.” (Lab. Code, § 226, subd. (e)(1).) The notice can and must also inform class members that this action seeks recovery only for the statutory penalties and not actual damages. The notice can and must also inform class members that if they do not opt out of the class, but they have suffered actual damages greater than the statutory penalties, class members would waive their right to recover any such greater actual damages.

Upon receipt of such notice, class members should be able to easily assess whether they suffered any actual damages from Defendants’ alleged violation of the statute. If they did, then they can easily opt out if they so wish. But if not, then they would recover the greater statutory penalties anyway.

Accordingly, the Court modifies the parties’ proposed class definitions and **APPROVES** the following definition, as noted above:

All current and former non-exempt employees who (1) were employed by Medicredit, Inc. and/or Parallon Revenue Cycle Services, Inc. in California, (2) received a wage statement reflecting one or more ‘BonRetOT’ payments at any time from April 23, 2020 to the date of class certification, and (3) seek to recover not actual damages but only the statutory penalty provided in California Labor Code section 226, subdivision (e)(1).

3. Form, Content, and Protocols for Class Notice

Accordingly, the Court also **ORDERS** Plaintiff to submit a revised proposed Class Notice that clearly and adequately explains to class members (1) the substance of the “inclusive dates” wage statement claim as to which class certification is being granted; (2) all the remedies available under Labor Code section 226(e)(1); (3) the limited recovery sought in this case; and (4) the resulting forfeiture of the right to seek greater actual damages if the class member does not opt out.

Otherwise, the Court finds that Plaintiff’s proposed form and content of class (ROA #564, 573) are acceptable, except that the Court further **ORDERS** Plaintiff to make the following minor modification:

In the caption, the proposed notice references that the *Heins* action is a Riverside Superior Court case as well as a part of JCCP No. 5269—but it does not specify the Court in which the JCCP is pending. The same is true for the case listing appearing under Section 15. Similarly, in Section 2, the notice explains only that the class action lawsuit is “now pending in the Superior Court of the State of California, County of Riverside,” but does not reference the JCCP pending in this Court. Class Members should be informed that the *Heins* action is pending in this Court as part of the JCCP.

Plaintiff must submit the revised proposed Class Notice at least 16 court days before the continued hearing.

The Court notes that Defendants’ only objection thus far to Plaintiff’s proposed class notice and process is that the class definition has been left blank; otherwise Defendants’ objection incorporated all its above-discussed arguments set forth in its supplemental brief on Plaintiff’s proposed class definition. (ROA #579.) Accordingly, if Defendants wish to object to Plaintiff’s revised proposed Class Notice submitted in response to this ruling, Defendants may only object only to any new language Plaintiff proposes in response to this ruling. Defendants must submit any such objections at least 9 court days before the continued hearing.

Plaintiff may submit a reply to Defendants’ objections at least 5 court days before the continued hearing.

Plaintiff shall give notice of all of the above.